

## FORM 70 BB

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| <b>SUPREME COURT-PRINCE EDWARD ISLAND</b><br><b>FAMILY SECTION</b><br><b>FORM 70BB</b><br>PRE-MOTION CONFERENCE MEMORANDUM | Court File Number:<br>_____ |
|----------------------------------------------------------------------------------------------------------------------------|-----------------------------|

|                                             |                                      |
|---------------------------------------------|--------------------------------------|
| <b>Name of party filing this memorandum</b> | <b>Date of pre-motion conference</b> |
|                                             |                                      |

### Moving Party

|                                                                                                                                                            |                                                                                                                                               |
|------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|
| <i>Full legal name &amp; address for service – street &amp; number, municipality, postal code, telephone &amp; fax numbers and email address (if any).</i> | <i>Lawyer's name &amp; address – street &amp; number, municipality, postal code, telephone &amp; fax numbers and e-mail address (if any).</i> |
|                                                                                                                                                            |                                                                                                                                               |

### Responding Party

|                                                                                                                                                            |                                                                                                                                               |
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| <i>Full legal name &amp; address for service – street &amp; number, municipality, postal code, telephone &amp; fax numbers and email address (if any).</i> | <i>Lawyer's name &amp; address – street &amp; number, municipality, postal code, telephone &amp; fax numbers and e-mail address (if any).</i> |
|                                                                                                                                                            |                                                                                                                                               |

## PART 1: FAMILY FACTS

|    |                                                           |                                          |                                |
|----|-----------------------------------------------------------|------------------------------------------|--------------------------------|
| 1. | MOVING PARTY:                                             | Age:                                     | Birthdate: (d, m, y)           |
| 2. | RESPONDING PARTY:                                         | Age:                                     | Birthdate: (d, m, y)           |
| 3. | RELATIONSHIP DATES:                                       |                                          |                                |
|    | 1 <input type="checkbox"/>                                | Married on <i>date</i> )                 |                                |
|    | <input type="checkbox"/>                                  | Separated on <i>date</i> )               |                                |
|    | <input type="checkbox"/>                                  | Started living together on <i>date</i> ) |                                |
|    | <input type="checkbox"/>                                  | Never lived together                     |                                |
|    | <input type="checkbox"/>                                  | Other <i>(Explain.)</i>                  |                                |
| 4. | The basic information about the child(ren) is as follows: |                                          |                                |
|    | <b>Child's full legal name</b>                            | <b>Age</b>                               | <b>Birthdate<br/>(d, m, y)</b> |
|    | <b>Grade/Year and<br/>school</b>                          | <b>Now living<br/>with</b>               |                                |
|    |                                                           |                                          |                                |
|    |                                                           |                                          |                                |

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|                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                |                                                              |                                                                                                            |  |
| <b>PART 2: ISSUES</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                |                                                              |                                                                                                            |  |
| <b>5.</b>             | <b>What are the issues in this case that HAVE been settled:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                |                                                              |                                                                                                            |  |
|                       | <input type="checkbox"/> decision-making responsibility for child(ren)*                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <input type="checkbox"/> child support         | <input type="checkbox"/> emergency protection order          | Restraining order:<br><input type="checkbox"/> against person<br><input type="checkbox"/> against property |  |
|                       | <input type="checkbox"/> parenting time**                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> spousal support       | <input type="checkbox"/> equalization of net family property |                                                                                                            |  |
|                       | <input type="checkbox"/> contact order***                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> ownership of property | <input type="checkbox"/> possession of home                  |                                                                                                            |  |
|                       | <p>* <i>Decision-making responsibility</i> means the responsibility for making significant decisions about a child's well-being, including in respect of health; education; culture, language, religion, and spirituality; and significant extra-curricular activities.</p> <p>** <i>Parenting time</i> means the time that a child spends in the care of a parent, whether or not the child is physically with that parent during that entire time.</p> <p>*** <i>Contact order</i> refers to an order providing for contact between a child and someone other than a parent.</p> |                                                |                                                              |                                                                                                            |  |
| <b>6.</b>             | <b>What are the issues for this pre-motion conference:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                |                                                              |                                                                                                            |  |
|                       | <input type="checkbox"/> decision-making responsibility for child(ren)*                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <input type="checkbox"/> child support         | <input type="checkbox"/> emergency protection order          | Restraining order:<br><input type="checkbox"/> against person<br><input type="checkbox"/> against property |  |
|                       | <input type="checkbox"/> parenting time**                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> spousal support       | <input type="checkbox"/> equalization of net family property |                                                                                                            |  |
|                       | <input type="checkbox"/> contact order***                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/> ownership of property | <input type="checkbox"/> possession of home                  |                                                                                                            |  |
| <b>7.</b>             | <b>If the issue of decision-making responsibility or parenting time are not yet settled: Has a Parenting Arrangements Assessment (home study) been requested?</b>                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                |                                                              |                                                                                                            |  |
|                       | <input type="checkbox"/> No                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                | <input type="checkbox"/> Yes. Date of request: _____         |                                                                                                            |  |
| <b>8.</b>             | <b>If child or spousal support is an issue, give the income of the parties:</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                |                                                              |                                                                                                            |  |
|                       | <i>(Attach proof of current income, most recent income tax return, and most recent Notice of Assessment or Reassessment)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                |                                                              |                                                                                                            |  |
|                       | Moving Party: \$ _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | per year for the year 20__                     |                                                              |                                                                                                            |  |
|                       | Responding Party: \$ _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | per year for the year 20__                     |                                                              |                                                                                                            |  |
|                       | Moving Party's Employer: _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                |                                                              |                                                                                                            |  |
|                       | Responding Party's Employer: _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                |                                                              |                                                                                                            |  |
| <b>9.</b>             | <b>Have you explored any ways to settle the issues still in dispute?</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                |                                                              |                                                                                                            |  |

|                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|--------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                      | <input type="checkbox"/> No <input type="checkbox"/> Yes. ( <i>Give details below</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>10.</b>                           | <b>Have any of the issues that have been settled been turned into a court order or a written agreement?</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|                                      | <input type="checkbox"/> No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|                                      | <input type="checkbox"/> Yes. <input type="checkbox"/> An order dated _____<br><input type="checkbox"/> A written agreement dated _____ ( <input type="checkbox"/> <i>copy attached</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>11.</b>                           | <b>Have the parents attended a family law or parenting education session?</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|                                      | <input type="checkbox"/> No.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|                                      | <input type="checkbox"/> Yes. ( <i>Give details.</i> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>12.</b>                           | <b>What is your proposal to resolve the issues, particularly in relation to the children?</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>PART 3: FINANCIAL INFORMATION</b> |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>13.</b>                           | <p><b>If a claim is being made for child support and a claim is made for special or extraordinary expenses under Section 7 of the <i>Child Support Guidelines</i>, give details of the special expenses. (Note: You do not need to attach receipts or other documentation that show the amount of expenses you are claiming for each child, but please be prepared to present amounts at the pre-motion conference.)</b></p> <p><input type="checkbox"/> I am claiming the following special or extraordinary expenses:</p> <p style="padding-left: 40px;">childcare expenses incurred as a result of the employment, illness, disability or education or training for employment of the spouse who has the majority of parenting time;</p> <p style="padding-left: 40px;">that portion of the medical and dental insurance premiums attributable to the child;</p> <p style="padding-left: 40px;">health-related expenses that exceed insurance reimbursement by at least \$100 annually, including orthodontic treatment, professional counselling provided by a psychologist, social worker, psychiatrist or any other person, physiotherapy, occupational therapy, speech therapy and prescription drugs, hearing aids, glasses and contact lenses;</p> <p style="padding-left: 40px;">extraordinary expenses for primary or secondary school education or for any other educational programs that meet the child's particular needs;</p> <p style="padding-left: 40px;">expenses for post-secondary education;</p> |

|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
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|                                                                                                                                                                                                                                                                                                                                                                                               | the following extraordinary expenses for extracurricular activities:                                                                                                     |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> I am not claiming special or extraordinary expenses                                                                                             |                                                                        |                                                            |
| <b>14.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>If a claim is made for child support and you claim that the <i>Child Support Guidelines</i> table amount should not be ordered, briefly outline the reasons here.</b> |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <b>PART 4: PROCEDURAL ISSUES</b>                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                          |                                                                        |                                                            |
| <b>15.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>Does any party need an order for the disclosure of documents, a property valuation, or any other matter in this case?</b>                                             |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> No                                                                                                                                              | <input type="checkbox"/> Yes ( <i>Give details below</i> )             |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <b>16.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>Are any other procedural orders needed?</b>                                                                                                                           |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> No.                                                                                                                                             | <input type="checkbox"/> Yes. ( <i>Give details.</i> )                 |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <b>17.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>Has Director of Child Protection been notified of the motion?</b>                                                                                                     |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> No                                                                                                                                              | <input type="checkbox"/> Yes. ( <i>Give details.</i> )                 | <input type="checkbox"/> N/A ( <i>Give reasons below</i> ) |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <b>18.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>Has the Director of Child Protection been involved with these parties at any time in the past?</b>                                                                    |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> No                                                                                                                                              | <input type="checkbox"/> Yes. ( <i>Give details.</i> )                 | <input type="checkbox"/> N/A ( <i>Give reasons below</i> ) |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <b>19.</b>                                                                                                                                                                                                                                                                                                                                                                                    | <b>Has the Office of the Children's Lawyer been involved with these parties at any time in the past?</b>                                                                 |                                                                        |                                                            |
|                                                                                                                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> No                                                                                                                                              | <input type="checkbox"/> Yes. ( <i>Give brief explanation below.</i> ) | <input type="checkbox"/> N/A ( <i>Give reasons below</i> ) |
|                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                          |                                                                        |                                                            |
| <div style="display: flex; justify-content: space-between; margin-top: 20px;"> <div style="width: 45%; text-align: center;"> <hr style="border: 0; border-top: 1px solid black; margin-bottom: 5px;"/> Date </div> <div style="width: 45%; text-align: center;"> <hr style="border: 0; border-top: 1px solid black; margin-bottom: 5px;"/> Signature of party or party's lawyer </div> </div> |                                                                                                                                                                          |                                                                        |                                                            |